13.	***Seton Hall University vs. Spitz*** *2026-01555640*	Before the court are following applications and petition filed on behalf of petitioner Seton Hall University (Petitioner): (1) verified application of Thomas P. Scrivo to appear as counsel pro hac vice on behalf of Petitioner; (2) verified application of Michael J. Dee to appear as counsel pro hac vice on behalf of Petitioner; and (3) petition to enforce deposition subpoena for personal appearance and production of documents, electronically stored information, and things in action pending outside California pursuant to California Code of Civil Procedure section 2029.600. **<u>Motion Nos. 1 & 2: Pro Hac Vice Applications</u>** The applications Petitioner submitted on behalf of Messrs. Scrivo and Dee comply with the requires for California Rules of Court, rule 9.40 and do not disclose any basis for denying the applications. Accordingly, both applications are GRANTED and Messrs. Scrivo and Dee are hereby admitted pro hac vice in this case to appear on Petitioner's behalf. Petitioner is ordered to give notice of these rulings. **<u>Motion No. 3: Petitioner to Enforce Deposition Subpoena</u>** By this petition, Petitioner seeks to compel nonparty Eric Spitz (Spitz) to appear for deposition and produce documents. On May 11, 2026, Spitz filed an ex parte application to continue the hearing on this petition to provide him with adequate time to retain counsel. On May 12, 2026, the court denied that application because Spitz failed to establish he had acted with reasonable diligence or any other ground for an ex parte continuance. On May 14, 2026, attorney William Lockyer filed a notice of appearance stating he had been retained to represent Spitz in these proceedings. Late in the day on May 26, 2026, the court learned attached to the back of the notice of appearance attorney Lockyer filed was a renewed ex parte application to continue the hearing on the petition. That renewed ex parte was never calendared or set for hearing because Spitz never took any of the steps necessary to have the application heard. For example, Spitz never separately filed the application, never provided a copy to the courtroom, never paid the filing fee, and never notified the courtroom until May 26, 2026. As such, the renewed ex parte application was never separately filed as a request for the court to consider and was never scheduled for a hearing or ruling.

		The court will not post a tentative ruling on the merits of the petition, but rather will hear from all parties at the hearing on the petition. The court's decision not to post a tentative does not necessarily mean the court will not proceed with a hearing on the merits of the petition. Indeed, the court reserves the ability to proceed with the petition and rule on its merits at the hearing. Whether to do so will be decided at the hearing.
14.	***In re the Petition of Brooks Street Partners, LLC*** *2026-01557423*	Before the court is the verified petition of petitioner Brooks Street Partners, LLC (Petitioner) for an order reinstating Petitioner to active status nunc pro tunc. As more fully set forth below, the petition is **GRANTED UPON CONDITION** pursuant to Government Code section 12261. Under section 12261, Petitioner has presented evidence establishing the factual representations set forth in the termination document that was submitted to the California Secretary of State on or about December 19, 2025, are materially false. Specifically, an employee of Petitioner's counsel prepared the termination document as a draft only and did not have authorization to file or otherwise submit them to the Secretary of State. Nonetheless, the termination document was inadvertently submitted. The termination document includes materially false factual representations because none of Petitioner's members or partners voted to terminate Petitioner, and Petitioner did not intend for the draft termination document to be filed with the Secretary of State. As such, Petitioner has made a showing sufficient to obtain relief under section 12261. Petitioner's reinstatement, however, must be "conditioned upon [Petitioner] concurrently submitting for filing an amendment to change its name to eliminate the conflict along with the certified copy of the order required by Section 12263." (Gov. Code., § 12261, subd. (b)(2).) As Petitioner explains, on December 24, 2025, Petitioner filed new articles of organization with the Secretary of State creating a new entity with the same name as Petitioner. Pursuant to Corporations Code section 17701.08, subdivision (b), two limited liability companies cannot have the same name and therefore one of the names must be changed. Further, the court notes no authority has been presented to authorize Petitioner's reinstatement "nunc pro tunc." To the contrary, Government Code section 12261, subdivision (b)(3), states, "That the business entity shall be reinstated effective from the date of the filing of the court order with the Secretary of State."